

Amendment No. 1 to HB0029

Kumar
Signature of Sponsor

AMEND Senate Bill No. 225

House Bill No. 29*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 56-7-2404, is amended by deleting the word "chiropractor" wherever it appears in subsection (a) and substituting "chiropractic physician"; and is further amended by deleting the word "chiropractors" from subdivision (a)(2) and substituting "chiropractic physicians".

SECTION 2. Tennessee Code Annotated, Section 56-7-2404(a), is amended by adding the following new subdivision:

(3)

(A) When a health insurance entity is determining the amount of reimbursement to be paid pursuant to subdivision (a)(1) or (2) for a service or procedure that is identified and listed in a nationally recognized services and procedures code book that is used by the health insurance entity, the health insurance entity shall not discriminate between a chiropractic physician and a physician licensed pursuant to title 63, chapter 6 or chapter 9, with respect to the methodology used to calculate reimbursement or the amount of reimbursement. A health insurance entity shall not attempt to circumvent this subdivision (a)(3) by creating a chiropractic-specific code or payment methodology not listed in the nationally recognized services and procedures code book used by the health insurance entity for determining the amount of reimbursement.

(B) This subdivision (a)(3) does not limit the ability of a health insurance entity to utilize national uniform relative value units (RVUs) that account for the relative resources used in furnishing a service or procedure.

(C) As used in this subdivision (a)(3):

(i) "Health insurance entity" has the same meaning as defined in § 56-7-109; and

(ii) "Nationally recognized services and procedures code book" includes, but is not limited to, the American Medical Association's Current Procedural Terminology (CPT) code book.

(D) This subdivision (a)(3) does not apply to:

(i) The TennCare program established under the Medical Assistance Act of 1968, compiled in title 71, chapter 5, part 1, or a successor medicaid program; or

(ii) The CoverKids program established under the CoverKids Act of 2006, compiled in title 71, chapter 3, part 11, or a successor program.

SECTION 3. This act takes effect on July 1, 2025, the public welfare requiring it.